

Mohammad Rashid & Another v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 16 July 2014 · 2014 SCC OnLine All 11387 · Writ - C No. 36167 of 2014 · **Writ petition disposed of; technical audit of the over-loading complaint directed**

HEADNOTE

A licensee is under an obligation, under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, to maintain the requisite supply of electricity and not to create an imbalance. On a complaint that installing an excess transformer in the village caused over-loading and a drop in voltage that rendered the complainants' tubewell dysfunctional (allegedly to benefit a private individual), the matter requiring a technical audit, the Court directed the competent authority to assess the complaint and submit a technical report to the Managing Director, who is to examine it under the Act and the Code and pass orders within three months after putting the affected party to notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::supply-quality-no-imbalance

Licensee's duty to maintain supply and not create load imbalance; complaint to be technically audited

QUESTION

How is a complaint that an excess transformer caused over-loading and voltage drop to be dealt with?

HOLDING

The licensee is obliged under the Act and the Code to maintain the requisite supply and not create an imbalance. The complaint requiring a technical audit, the competent authority must assess it and report to the Managing Director, who is to examine it under the Act/Code and pass orders within three months after notice to the affected party. ¶ (judgment)

LIMITING FACTS

Excess transformer allegedly installed to benefit one individual, causing over-loading, low voltage and a dysfunctional tubewell for the complainants.

PRINCIPLE TAGS

licensee-duty-to-maintain-supply-and-avoid-imbalance A licensee must maintain the requisite supply and not create a load imbalance; a technical complaint of over-loading is to be audited and decided by the competent authority after notice to affected parties. ¶ (judgment)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TRANSFORMER INSTALLATION IN FACT CAUSED THE ALLEGED IMBALANCE

Left to the technical audit and the Managing Director's decision. ¶ (judgment)